WAREHAM TOWN CLERK
2024 JUN 12 AM10:03

TOWN OF WAREHAM CONSERVATION COMMISSION MINUTES
MEETING HELD IN ROOM 320 MULTI-SERVICE CENTER as well via Zoom
APRIL 3, 2024

1. **CALL TO ORDER BY CHAIR**

2. **ROLL CALL**

Members present:	Sandra Slavin, Chair
	Kwamie Bartie, Vice Chair
	Autumn Wood
	Jessica Parr
	Paulajean O'Neill
	Michael Mercier
Also Present:	Denise Schultz, Associate member
	Joseph Stihl, Associate member
	Donna Colbert, Associate member
	Joshua Faherty, Conservation Administrator
Absent:	Carol Melanson, Clerk

3. **PUBLIC HEARINGS 6:00 PM**

All hearings of the Wareham Conservation Commission are held simultaneously under the authorities of the Massachusetts Wetlands Protection Act and the Town of Wareham Wetlands Protection Bylaw Divisions VI. Although a single decision of the commission is issued, it represents a separate decision under each authority.

Request for Determination of Applicability (RDA):

1. **Nicole Norris, 25 Bayview Street – RDA – 40 –** Construction of a sunroom, patio & outdoor shower.
   Present before the board: Brian Taylor, Steinback & Taylor Engineers.
   Discussion ensued.
   MOTION: Ms. Wood moved to issue a Negative 3, subject to the condition of receiving a revised plan indicating location of dry well. Seconded. **VOTE: 6-0-0 (unanimous)**

Notice of Intents (NOI)

1. **David Darling 3031, 3033, 3035, 3039 Cranberry Highway – NOI 49 –** Redeveloping the parking area adjacent to Water Wizz Park to expand, improve and reconfigure it to address public safety concerns. The proposed wetland replication is at a 1:1 ratio.

Present before the board: Applicant, David Darling, Attorney Eric Brainsky of Brainsky & Levinson, Mr. Matt Burne of BSC Group, and Mr. Taylor Dowdy of BSC Group. Amanda Smith from BSC Group via remote Zoom.

Discussion ensued.
MOTION: Mr. Mercier moved to continue the hearing until April 17, 2024. Seconded.
VOTE: (6-0-0) (Unanimous)

2. **Jason T. Nelson, 8 Over Jordan Road – NOI 50** – Construction and maintenance of a new four-bedroom single-family home on piles with a deck, stairs, elevated A/C and generator units, a Title 5 sewage disposal system, a gravel driveway, associated utilities and all grading, landscaping and associated appurtenances

   Present before the board: Laurie MacDonald with Cape & Islands Engineering.
   Discussion ensued.
   MOTION: Mr. Mercier moved to continue the hearing until April 17, 2024. Seconded.
   Vote: 6-0-0 (Unanimous)

3. **Jason T. Nelson, 10 Over Jordan Road – NOI 51 -** Construction and maintenance of a new four-bedroom single-family home on piles with a deck, stairs, elevated A/C and generator units, a Title 5 sewage disposal system, a gravel driveway, associated utilities and all grading, landscaping and associated appurtenances
   Present before the board: Laurie MacDonald with Cape & Islands Engineering.
   Discussion ensued.
   MOTION: Ms. Wood moved to continue the hearing until April 17, 2024. Seconded.
   VOTE: 6-0-0 (Unanimous)

4. **Richard England, 4 Over Jordan Road – NOI 52** – Construction and maintenance of a new four-bedroom single-family home on piles with a deck, stairs, elevated A/C and generator units, a Title 5 sewage disposal system, a gravel driveway, associated utilities and all grading, landscaping and associated appurtenances. The existing shed will remain.
   Present before the board: Laurie MacDonald w/Cape & Islands Engineering.
   Discussion ensued.
   MOTION: Mr. Mercier moved to continue the hearing until April 17, 2024. Seconded
   VOTE: 6-0-0 (Unanimous)

5. **Richard England, 172 Great Neck Road – NOI 53** Construction and maintenance of a new four-bedroom single-family home on piles with a deck, stairs, elevated A/C and generator units, a Title 5 sewage disposal system, a gravel driveway, associated utilities and all grading, landscaping and associated appurtenances.
   Present before the board: Laurie MacDonald w/Cape & Islands Engineering.
   Discussion ensued.
   MOTION: Mr. Mercier moved to continue the hearing until April 17, 2024. Seconded.
   VOTE: 6-0-0 (Unanimous)

CONTINUED PUBLIC HEARINGS 6:30 P.M.

Request for Determination of Applicability (RDA)

Notice of Intents (NOI)

1. **Prime Engineering, 370 County Road – NOI – 17-** To construct a large-scale ground-mounted photovoltaic solar array (2809) (Continued to April 3, 2024)
   Applicant requested a continuance to gather more information from the Fire Department.
   MOTION: Mr. Mercier moved to continue the hearing to April 3, 2024. Seconded.
   VOTE: 6-0-0 (Unanimous)

2. **Michael & Liana J. Dancey, 2 Seahorse Lane – NOI – 42** - The applicant proposed to demolish a cottage, construct a single-family dwelling, install a septic system and associated utilities, construct a formal driveway, widen the existing gravel roadway and to fill and grade partially within the 100' buffer of a Bordering Vegetated Wetland and within Land Subject to Coastal Storm Flowage, Flood Zone VE (el 20). (Continued to April 3, 2024)
   Present before the board: Dave Davignon of Schneider, Davignon & Leone
   Discussion ensued.
   MOTION: Ms. Wood moved to close the hearing. Seconded. **VOTE: 6-0-0 (Unanimous)**
   MOTION: Ms. Wood moved to approve the application, with the standard order of conditions. Seconded. **VOTE: 5-0-1** (Parr abstention)

3. **Sandy Beach Association of Point Independence Inc.,** 14 Cove Street – NOI 33- Removal of vegetation encroaching into the original beach footprint, due to a lack of maintenance in the past and beach nourishment from High-tide landward. Sands of similar grain size will be utilized. (Continued to April 3, 2024)
   Applicant requests a continuance.
   MOTION: Mr. Mercier moved to continue the hearing to April 17, 2024. Seconded.
   VOTE: 6-0-0 (Unanimous)

CLOSED HEARINGS

1. **Russell McKinnon, 28 Nelson Street – NOI 37** – Raze an existing house at 28 Nelson Street, increase the size of the dwelling by 280 sq ft, and create a 10-ft wide gravel drive. (Continued to April 3, 2024)
   Attorney Jillian Morton was engaged after the hearing and has requested to withdraw the application.
   MOTION: Mr. Mercier moved to accept the request to withdraw. Seconded.
   VOTE: 6-0-0 (Unanimous)

EXTENSION REQUESTS: NONE

CERTIFICATE OF COMPLIANCE REQUESTS: NONE

AMENDED ORDER OF CONDITION REQUESTS:

1. **David Gastfriend, 8 Beach Plum Lane – AOOC 4** – Change the location of the wooden stairs accessing the deck and placement of flat stone steps within the existing footpath from the yard to the beach stairs. Department of Environmental Protection number SE 076-2777.
   Present before the board: Bob Rogers, of GAF Engineering was present for the applicant.
   Discussion ensued.
   MOTION: Ms. Wood moved to approve the amended order of condition request with the previous actual order of any special conditions and the standard order of conditions. Special condition that Mr. Faherty meets with applicant.
   VOTE: 6-0-0 (Unanimous)

2. **PBIA, 114 Pinehurst Drive** – To amend an Order of Conditions issued by the Wareham Conservation Commission MassDEP file number, 76-2783.

Present before the board: Kevin Murphy, Trustee and Linda Cooper, Trustee
Discussion ensued.

MOTION: Ms. Wood moved to require a maximum of 60 yards be placed on property as beach nourishment in conjunction with oversight by Mr. Faherty. Seconded.
VOTE: 6-0-0 (Unanimous)

ENFORCEMENT ORDERS:

1. **Canedy Street, LLC, 4 Canedy Street Wareham MA** – Construction of retaining walls and grading within a 100' buffer zone to a Costal Bank and Salt March
   Mr. Faherty stated there is a 'stop work order' in place. Applicant is working with an engineer to file a NOI.

2. **Eryk Grassie, 50 Shangri-La Boulevard, Wareham, MA** – Demolition, construction and site work within a 100-foot buffer to Glen Charlie Pond
   MOTION: Ms. Wood moved to have Mr. Faherty issue an enforcement order. Seconded.
   VOTE: 6-0-0 (Unanimous)

3. **37 Pine Lake Drive, Wareham MA** – Expansion and renovation of a structure and deck, removal of trees within the 100-foot Buffer to Spectacle Pond
   Mr. Faherty reported there were two additions in front of house, as well as a deck with vegetation removed, pine trees.
   MOTION: Mr. Bartie moved to have Mr. Faherty issue an enforcement order on the deck. Seconded.
   VOTE: 6-0-0 (Unanimous)

4. **Judith Powell & Patricia Eiland, 71 Onset Avenue, Wareham MA** – Alterations made in a No Activity Zone, clearing within the jurisdiction of the Conservation Commission
   Homeowner has been previously cited and never filed a NOI. Property has been cleared again.
   MOTION: Ms. Wood moved to issue an enforcement order. Seconded.
   VOTE: 6-0-0 (Unanimous)

5. **Discussion: 2530 Cranberry Highway, Wareham, MA** – Compliance with Order of Conditions issued 7/14/22 – SE076-2755
   As the property has recently changed hands perhaps the owner did not know about the previous order of conditions.
   MOTION: Ms. Wood moved to have Mr. Faherty explain the order of conditions to the new owners. Seconded.
   VOTE: 6-0-0 (Unanimous)

OTHER BUSINESS/DISCUSSION AND/OR VOTE/BILLS

1. **Review and Accept Minutes - March 20, 2024**
   MOTION: Ms. O'Neill moved to accept the minutes as corrected. Seconded.
   VOTE: 6-0-0 (Unanimous)
2. **Bills, Appointments, Interviews and Reappointments**
3. **Administrative Approvals**
4. **Bylaw Revision Update**
5. **Workshop – Permits – Determination of Applicability (DOA)**

6. Clean-up of Agawam Mill Pond – Discussion and updates
Mike Lenihan, President of the Association reported on the ongoing clean-up and stated that regular reports are submitted to the Conservation Agent.

7. Review of Proposed Regulation changes from MASSDEP
Mr. Faherty reviewed the proposed regulation changes from MASSDEP, in particular a major change to what is acceptable in the flood plan standards. He explained the limit of wave action.

OTHER BUSINESS:
Ms. Schulz requested the commission follow 'Robert's Rules of order.'

Discussion ensued explaining how enforcement orders are filed and recorded.

MOTION: Mr. Mercier moved to adjourn the meeting at 9:45 PM. Seconded. **VOTE: 6-0-0 (Unanimous)**

Respectfully submitted,
Patricia Pacella
Recording Secretary

Attest SSSlaw **Clerk, Date** 6/10/24
Chair

Documents used or referred to in the meeting:

Nicole Norris, 25 Bayview Street – RDA 40
David Darling 3031, 3033, 3035, 3039 Cranberry Highway – NOI 49
Jason T Nelson, 8 Over Jordan Road – NOI 50
Jason T Nelson, 10 Over Jordan Road- NOI-51
Richard England, 4 Over Jordan Road – NOI-52
172 Great Neck Road – NOI -53
Prime Engineering, 370 County Road – NOI 17
Michael & Liana J Dancey, 2 Seahorse Lane – NOI -42
Sandy Beach Association of Point Independence Inc., 14 Cove Street – NOI -33
Russell McKinnon, 28 Nelson Street – NOI-37
David Gastfriend, 8 Beach Plum Lane – AOOC 4
PHIA, 114 Pinehurst Drive
Canedy Street LLC, 4 Canedy Street, Wareham MA
Eryk Grassie, 50 Shangri-La Boulevard, Wareham MA
37 Pine Lane Drive, Wareham, MA
Judith Powell & Patricia Elland, 71 Onset Avenue, Wareham MA
2530 Cranberry Highway, Wareham, MA
Minutes – March 20, 2024

For further information, please refer to the WCTV YouTube Link: